

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 02/04/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

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ID: 161 950 4895

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Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C24-00701
CASE NAME: ABDESSALAM MANSORI VS. LAILA ELFAZOUZI
***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This case management conference (CMC) trails the hearing on Lines 8, 9, 10 and 11, which are Counsel Dyas' Motion to Be Relieved as Counsel. Since these motions are granted, as unopposed, this CMC is continued to July 30, 2026 at 8:30 a.m. in Dept. 16. No appearance is required on February 4, 2026.

2. 9:00 AM CASE NUMBER: C24-02905
CASE NAME: JOSEPH SIMONI VS. AIDEN KEETON
***HEARING ON MOTION IN RE: STRIKE PUNITIVE DAMAGES**

FILED BY:

TENTATIVE RULING:

Before the Court is Defendants Aiden Keeton and Aaron Keeton (collectively, “Defendants” or “the Keetons”)’s motion to strike. The motion to strike relates to Plaintiff Joseph Simoni (“Plaintiff” or “Simoni”)’s prayer for punitive damages in his complaint for (1) Motor Vehicle, (2) General Negligence, and (3) Premises Liability.

Defendants move to strike Plaintiff’s prayer for punitive damages on the grounds that because Plaintiff failed to allege any facts in his complaint, he did not meet the stringent standard of oppression, fraud, or malice required to support a claim for punitive damages under California Code of Civil Procedure § 3294(a).

Plaintiff opposes Defendants’ motion to strike on the grounds that it is legally unsupported and improperly attempts to resolve factual issues at the pleading stage.

Defendant’s motion to strike is **granted**, with leave to amend

Factual Allegations and Background

Simoni filled out the PLD-PI-001 Complaint Form, approved for use by the Judicial Council of California, to initiate his lawsuit in this case on October 29, 2024. Though unclear in places, the thrust of the form is that he is suing father and son, Aaron and Aiden Keeton, and Does 1-100 for Motor Vehicle, General Negligence, and Premises Liability and is seeking compensatory and punitive damages.

Prompt No. 10 on the form includes the check boxes for the causes of action and says: “The following causes of action are attached and the statements above apply to each (*each complaint must have one or more causes of action attached*).” (PLD-PI-001 Complaint Form (emphasis added).) Simoni did not attach any causes of action. Nowhere on the form or on any attachment does Simoni allege any facts related to the complaint. He did, however, attach a traffic collision report prepared by the Concord Police Department.

The gravamen of the traffic collision report is that Simoni was struck on his motorcycle by Aiden Keeton (“Aiden”), who was driving an automobile with Aaron Keeton (“Aaron”) in the vehicle. (Collision Report at 1.) Simoni was thrown off his motorcycle and sustained a fractured pelvis, a dislocated left shoulder, a cracked left knee and a concussion. (*Id.* at 6, 8.)

Defendants sent Simoni three meet-and-confer letters and left a voicemail over the span of 13 business days in early-September, demanding that Simoni amend his complaint to allege sufficient facts to state a cause of action and to withdraw his prayer for punitive damages or Defendants would file a demurrer and motion to strike. (Khosravi Dec. ISO MTS ¶¶ 4-7, Ex. B, C, D.) Simoni did not reply. (*Ibid.*) The essential requirements of California Code of Civil Procedure § 430.41 were met.

Defendants filed the instant motion on September 24, 2025. They contend that Simoni’s prayer for punitive damages should be stricken because he failed to demonstrate that the defendants acted with oppression, fraud, or malice, and in fact failed to allege any facts at all. (MTS at 2:26-28; 3:1-3.)

Simoni, in his opposition to the Keetons' motion to strike, contends that he was lawfully operating his motorcycle when he was rear-ended by Defendants, whom he further contends were driving with a suspended or revoked driver's license. (Opp. to MTS. at 1:23-25.) Simoni goes on to argue that "Defendants knowingly chose to operate a motor vehicle despite legal prohibitions, demonstrating conscious disregard for the safety of others. Knowingly driving without a valid license is despicable conduct and supports punitive damages." (Opp. to MTS at 1:23-29.) Simoni does not provide citation to corresponding allegations in his complaint for these contentions.

Legal Standard

Motion to Strike

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof..." (Code Civ. Proc., § 435(b)(1).) The court may, upon a motion made pursuant to § 435 "(a) Strike out any irrelevant, false, or improper matter inserted in any pleading[,] [or] (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.) "The grounds for a motion to strike shall appear on the face of the challenged pleading." (Code Civ. Proc., § 437.)

To survive a motion to strike, an allegation of punitive damages requires the plaintiff to plead the ultimate facts showing entitlement to such relief. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1254.) "A plaintiff may recover punitive damages in an action for the breach of an obligation not arising out of contract where the defendant has been guilty of oppression, fraud, or malice." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227; Code Civ. Proc., § 3294(a).)

As used in this section, the following definitions shall apply:

- (1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.
- (2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.
- (3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294(c).)

An allegation that an intentional tort was committed is not sufficient to warrant an award of punitive damages. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) "*There must be an intent to vex, annoy or injure. Mere spite or ill will is not sufficient; and mere negligence, even gross negligence is*

not sufficient to justify an award of punitive damages.” (Ebaugh v. Rabkin (1972) 22 Cal.App.3d 891, 894 (emphasis in original).) Furthermore, the circumstances of oppression, fraud or malice must be alleged in the pleading to support such a claim. (Grieves, supra, 157 Cal.App.3d at 166.)

Self-representation is not a ground for exceptionally lenient treatment. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985.) *Pro per* litigants are not entitled to special treatment and are held to the same rules of procedure as an attorney. (*Bai v. Yip* (2024) 107 Cal.App.5th 188, 197.)

Analysis

Plaintiff argues for the first time in his opposition to the instant motion that Defendants were driving with a suspended or revoked driver’s license. (Opp. to MTS. at 1:23-25.) However, arguments in opposition that are not supported by allegations in the challenged pleading are insufficient.

Circumstances of oppression, fraud, or malice must be alleged in the pleading to support a prayer for punitive damages. (*Grieves, supra*, 157 Cal.App.3d at 166.) Here, the complaint alleges no facts – let alone facts showing oppression, fraud, or malice. Even if these allegations are true, driving without a valid license does not, by itself, establish the requisite intent for punitive damages, absent additional allegations of despicable conduct. (*Dawes v. Superior Court* (1980) 111 Cal.App.3d 82, 90.)

Because Simoni’s opposition allegations are not pleaded in his complaint, they cannot support a prayer for punitive damages. The Court nonetheless views Simoni’s attempt to insert allegations into his opposition that are absent from his complaint as a demonstration that he may have additional facts to plead in an amended complaint such that the issues with his prayer for punitive damages cited herein may be cured.

Accordingly, Defendants’ motion to strike Plaintiff’s prayer for punitive damages is **granted, with leave to amend**.

3. 9:00 AM CASE NUMBER: C24-02905

CASE NAME: JOSEPH SIMONI VS. AIDEN KEETON

HEARING ON DEMURRER TO: COMPLAINT

FILED BY:

TENTATIVE RULING:

Before the Court is Defendants Aiden Keeton and Aaron Keeton (collectively, “Defendants” or “the Keetons”)’s demurrer. The demurrer relates to Plaintiffs Joseph Simoni (“Plaintiff” or “Simoni”)’s complaint for (1) Motor Vehicle, (2) General Negligence, and (3) Premises Liability.

Defendants demur to Plaintiff’s entire complaint pursuant to California Code of Civil Procedure § 430.10(e) on the grounds that Plaintiff fails to state sufficient facts to constitute a cause of action.

Plaintiff opposes Defendants’ demurrer, arguing that he stated all elements of negligence.

For the following reasons, Defendants’ demurrer to Plaintiff’s complaint is **sustained with leave to amend**.

Factual Allegations and Background

Simoni filled out the PLD-PI-001 Complaint Form, approved for use by the Judicial Council of California, to initiate his lawsuit in this case on October 29, 2024. Though unclear in places, the form generally indicates that Simoni is suing father and son, Aaron and Aiden Keeton, and Does 1-100 for Motor Vehicle, General Negligence, and Premises Liability, and is seeking compensatory and punitive damages.

Prompt No. 10 on the form includes the check boxes for the causes of action and says: “The following causes of action are attached and the statements above apply to each (*each complaint must have one or more causes of action attached*).” (PLD-PI-001 Complaint Form (emphasis added).) Simoni did not attach any causes of action. Nowhere on the form or on any attachment does Simoni allege any facts related to the complaint. He did, however, attach a traffic collision report prepared by the Concord Police Department.

The gravamen of the traffic collision report is that Simoni was struck on his motorcycle by Aiden Keeton (“Aiden”), who was driving an automobile with Aaron Keeton (“Aaron”) in the vehicle. (Collision Report at 1.) Simoni was thrown off his motorcycle and sustained a fractured pelvis, a dislocated left shoulder, a cracked left knee and a concussion. (*Id.* at 6, 8.)

Defendants sent Simoni three meet-and-confer letters and left a voicemail over the span of 13 business days in early-September, demanding that Simoni amend his complaint to allege sufficient facts to state a cause of action and to withdraw his prayer for punitive damages or Defendants would file a demurrer and motion to strike. (Khosravi Dec. ISO MTS ¶ 4-7, Ex. B, C, D.) Simoni did not reply. (*Ibid.*) The essential requirements of California Code of Civil Procedure § 430.41 were met.

Defendants filed the instant motion on September 24, 2025. In it they contend that Simoni failed to allege sufficient facts to state a cause of action, and in fact failed to allege any facts at all.

Simoni, in his opposition to the Keetons’ demurrer, argues that he was “lawfully operating his motorcycle” when he was rear-ended by Aaron, whom he alleges was not only driving, but driving with a suspended or revoked driver’s license. (Opp. to Dem. at 2:9-13.) Simoni goes on to argue that “Defendant falsely claimed his 18-year-old son was driving. [...] The son held only a provisional license and could not legally drive at night.” (*Id.* at 2:14-16.) He further argues that the Keetons lied to police. Simoni does not provide citation to corresponding allegations in his complaint for these contentions.

Legal Standard

Demurrer

A demurrer tests the legal sufficiency of a complaint. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) A complaint shall contain a statement of the facts constituting the cause of action, in ordinary and concise language. (*Logan v. Southern Cal. Rapid Transit Dist.* (1982) 136 Cal.App.3d 116, 126; *Kamen v. Lindly* (2001) 94 Cal.App.4th 197, 201; Code Civ. Proc., § 425.10(a).)

“Although California courts take a liberal view of inartfully drawn complaints, “[i]t remains essential ...

that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought.’ (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413 citing *Signal Hill Aviation Co. v. Stroppe* (1979) 96 Cal.App.3d 627, 636.; *Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6.)

The Court assumes the truth of all properly pleaded material factual allegations, but not its contentions, deductions, or conclusions of law. (*Los Altos Golf & Country Club v. County of Santa Clara* (2008) 165 Cal.App.4th 198, 203; *Campbell v. Superior Court*, 44 Cal. App. 4th 1308, 1310-1311.) All that is required to overcome a demurrer is that the plaintiff plead facts entitling him to some form of relief under any possible legal theory. (*Woods v. Superior Court of Butte County* (1981) 28 Cal.3d 668, 673.) The complaint is “the only record by which the question of the sufficiency of the facts as stating a cause of action may be judged.” (*United Bank & Trust Co. v. Fidelity & Deposit Co.* (1928) 204 Cal. 460, 461; (*Childs v. Cal.* (1983) 144 Cal.App.3d 155, 159.)

The Judicial Council pleading forms have simplified the art of pleading, and have made the task of drafting much easier. Nevertheless, in some cases more is required than merely placing an “X” in a box. (See Weil & Brown, *Civil Procedure Before Trial* (The Rutter Group at § 6:105, p. 6-24 [Weil & Brown].) “Adoption of Official Forms for the most common civil actions has *not* changed the statutory requirement that the complaint contain ‘facts constituting the cause of action.’” (*Id.* at § 6:103, p. 6-23.5.) Thus, in order to be demurrer-proof, a form “complaint must contain whatever *ultimate facts* are essential to state a cause of action under existing statutes or case law.” (*Ibid.*)

(*People ex rel. Dept. of Transportation v. Superior Court* (1992) 5 Cal.App.4th 1480, 1484.)

It is an abuse of discretion to deny leave to amend on demurrer if there is a reasonable possibility that the defect can be cured by amendment even where no request to amend the pleading is made. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Salazar v. Target Corp.* (2022) 83 Cal.App.5th 571, 576-577.) “Where the complaint is defective, ‘[in] the furtherance of justice great liberality should be exercised in permitting a plaintiff to amend his complaint...’” (*Scott v. Indian Wells* (1972) 6 Cal.3d 541, 549 (citations omitted).)

Self-representation is not a ground for exceptionally lenient treatment. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985.) *Pro per* litigants are not entitled to special treatment and are held to the same rules of procedure as an attorney. (*Bai v. Yip* (2024) 107 Cal.App.5th 188, 197.)

Plaintiff’s Complaint is Deficient

While use of a Judicial Council pleading form is adequate, merely “placing an ‘X’ in a box” does not obviate the need on demurrer for the inclusion of essential facts necessary to state a cause of action under statute or case law. (*People ex rel. Dept. of Transportation, supra*, 5 Cal.App.4th at 1484; (Code

Civ. Proc., § 425.10(a).)

Simoni cannot rely on the facts included in his opposition because those facts were absent from his complaint. (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.) Allegations raised for the first time in opposition to a demurrer are not considered.

Even if, assuming *arguendo*, the traffic collision report attached to Simoni's complaint could qualify as a statement of facts, Simoni fails to plead how those facts relate to the causes of action he alleges.

Negligence

Drivers have a general duty to take ordinary care in avoiding creating unreasonable risks to others. (*Cabral v. Ralphs Grocery Co.* (2011) 51 Cal.4th 764, 774.) "Every owner of a motor vehicle is liable and responsible for death or injury to person or property resulting from a negligent or wrongful act or omission in the operation of the motor vehicle..." (Veh. Code, § 17150.)

General negligence, motor vehicle negligence, and premises liability are all forms of negligence to which general negligence principles apply. (*Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619; *Cabral v. Ralphs Grocery Co.* (2011) 51 Cal.4th 764, 774.) Plaintiff must make a showing of four elements to state a claim for negligence: (1) the Defendants had a legal duty of care to Plaintiff; (2) the Defendants breached that duty; (3) Plaintiff suffered an injury because of the Defendants' breached duty; and (4) damages. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 141.)

Here, Simoni fails to allege in his complaint any act, omission, or wrongful act by either defendant or how such an act, omission, or wrongful act caused Simoni's injuries. He does not allege in his complaint how either defendant breached a duty of care. A traffic collision report cannot take the place of factual allegations in a pleading, and the Court is not required to assemble facts from an exhibit to construct a cause of action not pleaded.

Conclusion

Because Simoni alleges no facts supporting breach or causation in his complaint, he fails to state a cause of action for motor vehicle negligence, general negligence, or premises liability. The Court nonetheless views Simoni's attempt to insert allegations into his opposition that are absent from his complaint as a demonstration that he may have additional facts to plead in an amended complaint such that the issues with his initial complaint may be cured.

For the foregoing reasons, the demurrer to all three causes of action is **sustained with leave to amend**^[1].

^[1] The Court cautions Plaintiff that under the Sham Pleading Doctrine, a plaintiff cannot, without explanation, amend their complaint to add facts inconsistent with previous pleadings, or omit harmful allegations present in previous pleadings, in an effort to avoid attacks raised on demurrer or motion for summary judgment. (*Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 425.) Furthermore, when facts alleged in a pleading contrast with facts in exhibits, the facts contained in the exhibits will be accepted as true and controlling and will be given precedence. (*Dodd v. Citizens Bank of Costa Mesa* (1990) 222

Cal.App.3d 1624, 1627.) “The courts...will not close their eyes to situations where a complaint contains allegations of fact inconsistent with attached documents.” (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.)

4. 9:00 AM CASE NUMBER: C24-01098
CASE NAME: LAILA ELFAZOUZI VS. ABDESASALAM MANSORI

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This case management conference (CMC) trails the hearing on Lines 8, 9, 10 and 11, which are Counsel Dyas’ Motion to Be Relieved as Counsel. Since these motions are granted, as unopposed, this CMC is continued to July 30, 2026 at 8:30 a.m. in Dept. 16. No appearance is required on February 4, 2026.

Law & Motion

5. 9:00 AM CASE NUMBER: C23-00098

CASE NAME: CARL PREWITT VS. TEXACO INC.

HEARING ON SUMMARY MOTION

FILED BY: TEXACO INC.

TENTATIVE RULING:

This hearing is continued, *sua sponte*, to March 4, 2026 at 9:00 a.m. in Department 16.

6. 9:00 AM CASE NUMBER: C23-02494

CASE NAME: JON JONSSON VS. CARLOS BADELL

HEARING ON MOTION FOR SUMMARY JUDGMENT

FILED BY: CITY OF RICHMOND

TENTATIVE RULING:

Before the Court is a motion for summary judgment or, in the alternative, summary adjudication, filed by defendant, the City of Richmond (“City”). As discussed below, the motion is **granted**. The City shall circulate and submit, separate from any order on this motion, a proposed form of judgment.

I. Background

On April 19, 2023, plaintiff, who was riding a motorized scooter in the bicycle lane, was struck by a truck driven by defendant Carlos Badell. The truck and scooter had both been traveling the same direction on West Cutting Boulevard, near the intersection with Canal Boulevard. Badell turned right into a parking lot, struck plaintiff, and reported being unable to see plaintiff because the bicycle lane was situation behind a row of cars that were parked along Cutting, parallel to Cutting, between traffic and the bicycle lane. (Separate Statement of Undisputed Material Fact, hereinafter “SSUMF,” Fact Nos. 5, 9, and responses by plaintiff and Badell.) Plaintiff has complete memory loss from a point somewhere after turning onto Cutting Boulevard, before the collision occurred. (SSUMF, Fact No. 6, and responses by plaintiff and Badell.)

On October 3, 2023, plaintiff brought suit against the City of Richmond, as well as the individual defendant, Carlos Badell. (SSUMF, Fact No. 1, and responses by plaintiff and Badell.)

Plaintiff alleges motor vehicle negligence against Badell and a cause of action for dangerous condition of public property against the City. (SSUMF, Fact No. 2, and responses by plaintiff and Badell.) In terms of facts, the complaint states the following:

Plaintiff was lawfully operating his electric bicycle on W. Cutting Blvd. near Canal Blvd. in the bike lane. A vehicle operated by Carlos Badell was been [sic] driven also on W. Cutting Blvd. The vehicle turned right into a parking lot and struck Plaintiff. The vehicle was unable to see Plaintiff as the bike lane was behind a row of cars parked perpendicular [sic] to the bicycle lane. The driver of the vehicle alleges that he could not see Plaintiff due to the way the City of Richmond permitted vehicles to park in such a way that the bike lane was not visible.

The City answered the complaint on November 20, 2023 by way of a general denial that included affirmative defenses. The City's defenses included design immunity (Government Code section 830.6) and immunity under Government Code sections 830.4 and 830.8. (SSUMF, Fact Nos. 3-4, and responses by plaintiff and Badell.)

II. Motion and Oppositions

The City filed this motion in October of 2025. The City labels this motion as one for summary judgment or, in the alternative, summary adjudication. However, each of the issues identified are issues that would dispense with plaintiff's single cause of action against the City. Accordingly, the motion is more appropriately referred to as one for summary judgment with three legal bases: (1) lack of a dangerous condition, (2) design immunity, and (3) other immunities based on failure to provide traffic signals, signs, or markings.

The motion is supported by the SSUMF, a memorandum of points and authorities, a request for judicial notice, an index of evidence and four declarations. One declaration is from Robert Armijo, P.E., the Deputy Director for Public Works and the City Engineer for the City of Richmond, whose provides testimony regarding approval of the plans for the location involved. Christian Engelmann, a registered traffic engineer, provides expert opinion as to the layout and safety of the relevant location. Counsel, Jennifer A. Kung Gellini, provides a declaration authenticating certain litigation materials and outlining an anticipated response to the motion from plaintiff. Norma Contreras, the Police Records and Property Manager at the City of Richmond Police Department, also provides a declaration, purportedly with the traffic collision report and body camera footage from the responding officers, though the latter does not appear to have been successfully submitted as evidence (the Court does not accept video footage via hyperlink).

Defendant Badell filed an opposition to the motion on December 18, 2025. He argues much of the City's evidence is inadmissible and that the inclusion of facts in the separate statement concedes their materiality. In support of his opposition, Badell submits objections to evidence and a response to the City's SSUMF. He also submits an Index of Evidence, which includes his own declaration (Ex. 6), attaching a photograph of a "yield to bicycles" sign placed near the location of the accident, which Badell took after the accident. He also submits excerpts from his own deposition testimony (Ex. 1) and excerpts from the deposition of the responding police officer, Michael Pagaling (Ex. 5), as well as a declaration from counsel (Ex. 4).

The plaintiff filed his opposition on January 20, 2026. The City argues the opposition papers were late and should not be considered because the City had insufficient time to prepare a reply. The Court has nevertheless considered both sets of opposition papers and the City's reply.

Plaintiff's opposition brief does not address the City's dangerous condition contentions. He

instead argues that the asserted immunities do not apply. In support of the opposition, plaintiff provides a declaration by counsel which attaches Google Map screenshots from 2024 and 2025 of “the scene where the incident occurred.” The screenshots include a “yield to bicycles” sign similar to the one in Badell’s photograph.

The City’s reply requests that the Court disregard both oppositions, but also provides substantive argument with respect to the contentions. The City provides a supplemental declaration from Christian Engelmann that opines the bases for plaintiff’s opposition are factually and legally misleading. The City argues that Badell and plaintiff need expert testimony to counter the expert testimony presented in the moving papers.

III. Standard

To be entitled to judgment as a matter of law, a defendant (or cross-defendant) must show by admissible evidence that the action has no merit. (Code Civ. Proc., § 437c, subd. (a).) A defendant has met its burden of showing that a cause of action has no merit if it demonstrates the absence of any single essential element of plaintiff’s case or a complete defense to plaintiff’s action. (Code of Civ. Proc., § 437c, subd. (o).) Once the moving defendant has met that burden, the burden shifts to the plaintiff to show via specific facts that a triable issue of material fact exists as to a cause of action -or a defense thereto. (Code of Civil Procedure § 437c, subd. (p)(2).) A plaintiff may not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists. (*Ibid.*)

A material fact is one that might affect the resolution of the claim, affirmative defense, counterclaim, or discrete issue raised in the summary judgment motion under the applicable substantive law. (Cal Rules Ct, Rule 3.1350(a)(2).) Facts that do not affect the outcome are not material. (*Knapp v. Doherty* (2004) 123 Cal.App.4th 76, 89.)

Although the burden of production shifts, the moving party always bears the burden of persuasion. (*Aguilar v. Atlantic Richfield* (2001) 25 Cal.4th 826, 850.) We strictly construe the moving party’s evidence and liberally construe the opposing party’s evidence. (*Gafcon Inc. v. Ponsor & Associates* (2002) 98 Cal.App.4th 1388, 1402) without weighing the evidence or conflicting inferences. (*Aguilar, supra*, 25 Cal.4th at 856; Code Civ. Proc., § 437c, subd. (c); *Woodridge Escondido Property Owners Ass’n. v. Nielsen* (2005) 130 Cal.App.4th 559, 567-568.)

IV. Evidentiary Matters

Plaintiff’s Request for Judicial Notice seeks notice of (1) the complaint, (2) the City’s answer, and (3) two images from Google Maps (one as of November 2024 and one as of April 2025). The City also requests notice of the complaint and the City’s answer. The requests are **granted**.

Both plaintiff and Badell have filed objections to the City’s evidence. These are **overruled**.

V. Discussion

A. Issue No. 1 - Dangerous Condition of Public Property (Government Code § 835)

Defendant argues that plaintiff has failed to allege the elements of this cause of action, specifically the existence of a dangerous condition.

A cause of action for dangerous condition of public property must allege: (1) a dangerous condition of public property; (2) a proximate causal connection between the condition and the injury sustained; (3) a reasonably foreseeable risk that the kind of injury that occurred would result from the dangerous condition; and (4) the entity either created the condition, or had actual notice or constructive notice of its existence, and there was sufficient time before the injury for it to have taken

remedial action. (Gov. Code, § 835; *People ex Rel. Dept. of Transportation v. Superior Court (Verdeja)* (1992) 5 Cal.App.4th 1480, 1484-1485.)

Section 835 of the California Government Code "sets out the exclusive conditions under which a public entity is liable for injuries caused by a dangerous condition of public property." (*Brown v. Poway Unified School Dist.* (1993) 4 Cal.4th 820, 829; *Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1131-1132.) "Dangerous condition" is statutorily defined as a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used. (Gov. Code § 830 (a).)

The determination of whether a condition is "dangerous" is generally one of fact for the jury (or the court acting as trier of fact). (*Peterson v San Francisco Community College Dist.* (1984) 36 Cal.3d 799, 810; *Constance B. v State* (1986) 178 Cal.App.3d 200.) This question can be determined as a matter of law only if reasonable minds can come to only one conclusion. (*Mittenhuber v City of Redondo Beach* (1983) 142 Cal.App.3d 1, 5.) Along these lines, Government Code section 830.2 states, "[a] condition is not a dangerous condition [...] if the trial or appellate court, viewing the evidence most favorably to the plaintiff, determines as a matter of law that the risk created by the condition was of such a minor, trivial or insignificant nature in view of the surrounding circumstances that no reasonable person would conclude that the condition created a substantial risk of injury when such property or adjacent property was used with due care in a manner in which it was reasonably foreseeable that it would be used."

Here, the moving papers do not suffice to meet the City's initial burden as they do not show the City is entitled to judgment as a matter of law. As pointed out in the opposition papers by Badell, Badell claims to have been unable to see plaintiff at all times prior to the collision. A third party's negligence, assuming it exists here, does not negate the existence of a dangerous condition where a third party's negligence is foreseeable in conjunction with some particular feature of the public property. (*Swaner v. City of Santa Monica* (1984) 150 Cal.App.3d 789, 804.)

Accordingly, the Court examines the immunities asserted.

B. Issue No. 2 - Design Immunity (Government Code § 830.6)

Additionally, the City argues that even if the intersection of the boatyard driveway and Cutting Boulevard were a dangerous condition of public property, it is entitled to design immunity.

A public entity may be liable for personal injuries caused by the "dangerous condition" of its property. (Gov. Code, § 835.) An entity may avoid liability, however, through the affirmative defense of the design immunity. (Gov. Code, § 830.6.) "A public entity claiming design immunity must establish three elements: (1) a causal relationship between the plan or design and the accident; (2) discretionary approval of the plan or design prior to construction; and (3) substantial evidence supporting the reasonableness of the plan or design." (*Cornette v. Department of Transportation* (2001) 26 Cal.4th 63, 69, citing *Grenier v. City of Irwindale* (1997) 57 Cal.App.4th 931, 939.)

The first element, a causal relationship between the plan and the accident, requires proof that the alleged design defect was responsible for the accident, as opposed to some other cause. (*Grenier, supra*, 57 Cal.App.4th at 940.) Neither plaintiff nor Badell dispute this issue.

The second element, discretionary approval, "is satisfied by showing the plan or design was either (1) approved in advance of the construction or improvement by the legislative body of the public entity or by some other body or employee exercising discretionary authority to give such approval or (2) prepared in conformity with standards previously so approved. (*Kabat v. Department*

of Transportation (2024) 107 Cal.App.5th 651, 661, citations omitted.) “Discretionary approval need not be established with testimony of the people who approved the project. Testimony about the entity’s discretionary approval custom and practice can be proper even though the witness was not personally involved in the approval process.” (*Dobbs v. City of Los Angeles* (2019) 41 Cal.App.5th 159, 161.”

Here, Robert Armijo, P.E., the Deputy Director for Public Works and the City Engineer for the City of Richmond, provides testimony regarding approval of the plans for the location of the accident here. Armijo’s testimony regarding the context of approval here (mid-construction changes) and general practices of the City for such mid-construction changes, does permit a reasonable inference that the revised plans were approved by the relevant individual.

Despite the lack of any writing specifically approving of the design changes here, the City does not typically require amended plans to be re-signed. Since the changes occurred mid-construction, and the original plans were already approved, the lack of any work stoppage here means that the City Engineer or Patrick Phalen (Engineering Infrastructure Administrator, the individual vested with discretionary approval authority here) reviewed the revised plans and ensured conformity with approved plans. The City’s evidence shows approval must have occurred because construction was not stopped despite “multiple inspections” and the eventual approval by the City Engineer.

Plaintiff and Badell both argue the City fails to establish this element of discretionary approval prior to construction. Specifically, both Badell and plaintiff argue that the approval cannot be “implied.” The Court notes that the point is an inference, not implication, and that the summary judgment statute requires consideration of “all inferences reasonably deducible from the evidence.” (See Code Civ. Proc., § 437c (c) [court considers all evidence in the papers, except that to which objections have been sustained].) Plaintiff and Badell, on the other hand, do not present any evidence that shows, or would lead to a reasonable inference, that the design was *not* approved.

Plaintiff cites *Martinez v. County of Ventura* (2014) 225 Cal.App.4th 364, 374. In that case, the appellate court reversed a trial court’s jury verdict that found the county was entitled to design immunity. There, the evidence was insufficient as a matter of law because of two reasons. First, there was no plan or design at all. (*Id.* at 370.) Second, there was insufficient evidence that the person who approved the construction had the discretionary authority to do so. (*Id.* at 371.)

Both premises for that court’s opinion set this case apart. First, there are drawings and plans here that meet the “low standard” for this element. (*Martinez, supra*, 225 Cal.App.4th at 370, citing *Thomson v. City of Glendale* (1976) 61 Cal.App.3d 378, 384-385 [holding that shop drawing which was designed by an outside fabricator rather than a public employee was sufficient for a design because “there is no requirement that the design be expressed in any particular form”].) Second, no one is disputing the authority of the City Engineer to approve changes to plans. While the final design was not approved until after the incident in this case, that finality was not required for changes made during the course of construction. If it were, design immunity would be nearly impossible to invoke for any liability during the course of long-term construction projects.

Here, there is evidence that an engineering firm worked on the design and requested a changed scope of work on January 26, 2023. (Index of Evidence in Support of Motion, part 7 of 14, Ex. L [firm had “prepared an updated Striping and Improvement plan for Cutting Blvd for review by the CPUC and for the striping contractor to install.”]) The City later authorized payment for that work. (*Ibid.*; see also Ex. M.)

As to the third element of design immunity, “substantial evidence” is all that is required. (*Menges v. Department of Transportation* (2020) 59 Cal.App.5th 13, 20, citing *Grenier, supra*, 57

Cal.App.4th at 940-941.) A case involving design immunity does not function as a typical summary judgment case would because the court does not provide a de novo interpretation of the design. (*Id.* at 21, citing *Ramirez v. City of Redondo Beach* (1987) 192 Cal.App.3d 515, 525–526.) The Court is simply tasked with finding “any substantial evidence,” which may consist of (1) discretionary approval of the design plans themselves, (2) expert opinion of a civil engineer as to the reasonableness of the design, or (3) evidence the design complies with prevailing professional standards. (*Menges, supra*, 59 Cal.App.5th at 21, citations omitted.) Here, all three types of evidence have been presented by the City. (See, e.g., Declaration of Christian Engelmann, ¶135.) This qualifies as substantial evidence.

The City of Richmond has established the applicability of design immunity. Plaintiff and Badell, on the other hand, have not raised material disputes of fact sufficient to deny summary judgment here. While Badell cites *Insalaco v. Hope Lutheran Church of West Contra Costa County* (2020) 49 Cal.App.5th 506 for the rule that inclusion in the separate statement concedes materiality, this does not deprive the Court of its role to determine which ultimate facts are at issue and material to the outcome. The “disputes” raised, in light of the Court’s above rulings on the objections, are either immaterial or not true disputes.

C. Issue No. 3 - Immunity for Failure to Provide Traffic Signs, Signals, or Markings (Government Code §§ 830.4 and 830.8)

The third basis on which the motion is made, immunity pursuant to Government Code sections 830.4 and 830.8, also applies. Government Code, section 830.4 states that a condition is not a dangerous condition “merely because of the failure to provide regulatory traffic control signals, stop signs, yield right-of-way signs, or speed restriction signs [...]” Government Code, § 830.8 states the immunity: “[n]either a public entity nor a public employee is liable under this chapter for an injury caused by the failure to provide traffic or warning signals, signs, markings or devices described in the Vehicle Code.” While the section excepts certain liabilities that might arise, the ones identified in Government Code section 830.4 are not subject to the exception. The only sign plaintiff or Badell contend should have been placed is a yield to bicycles sign. The issue is insufficient to create a dangerous condition, as set forth in Government Code, § 830.4. Immunity would therefore apply. Further, to the extent any exception to Government Code, § 830.8 could be relevant, any reasonable juror would conclude that, so long as a parked row of cars was blocking view of another lane of traffic (whether a bike lane or car lane), the need to observe any parallel traffic would be reasonably apparent to a person exercising due care while approaching a driveway.

The motion for summary judgment must be granted.

7. 9:00 AM CASE NUMBER: C23-03148

CASE NAME: ERICA LEONARDO VS. DIANA ORMAN

HEARING ON SUMMARY MOTION

FILED BY: BANK OF AMERICA, N.A.

TENTATIVE RULING:

Cross-Defendant Bank of America’s motion for summary judgment is denied. The motion for summary adjudication is granted as to attorney fees and otherwise denied.

Cross-Complainant Diana Orman is the personal representative of Philip Blair’s estate and Blair’s daughter. Erica Leonardo sued Orman alleging that she had an agreement with Blair (her

grandfather) where she would care for Blair and when he passed away she would receive his house located in Bay Point. Orman filed a cross-complaint against Leonardo and Bank of America suing for the bank for negligence and Leonardo for fraud and conversion.

Bank of America requests summary judgment on the negligence cause of action. Bank of America also requests summary adjudication on several issues within the negligence cause of action. Finally, Bank of America requests summary adjudication that Orman is not entitled to attorney's fees.

As to Bank of America, Orman alleges that she told Bank of America several times to hold the funds in Blair's bank accounts because he had passed away and they were working on probating the estate. After being told, Bank of America improperly gave \$106,628.72 in Blair's bank account to Leonardo instead of holding it for Blair's estate. Bank of America argues that they gave the money to Leonardo because she provided a Probate Code section 13100 form.

With a few exceptions, the facts here are not in dispute. Philip Blair passed away on January 3, 2023. (Undisputed Fact 1, Cross-comp. ¶7.) Blair had two accounts with Bank of America totaling \$106,628.72. When he opened his accounts, Blair agreed to be bound by certain terms, including the Deposit Agreement. (Undisputed Facts 3-5, Jordan dec. ¶5 and ex. A.) The version in effect when Blair died was dated November 22, 2022. (Undisputed Fact 6; Jordan Dec. ¶6 and ex. B.)

On June 16, 2023, Leonardo submitted a signed Affidavit for Collection of Personal Property to Bank of America pursuant to Probate code section 13100. (Undisputed Fact 7, Jordan Dec. ¶7 and ex. C.) The affidavit was accompanied by a copy of Blair's death certificate and Leonardo's government-issued identification. (Jordan Dec. ¶9.) Orman declares that this version of the death certificate did not have Blair's correct social security number. (Orman dec. ¶12.) After reviewing Leonardo's documents, Bank of America issued checks to Leonardo on June 29, 2023 for the total balance in Blair's accounts. (Undisputed Fact 10, Jordan Dec. ¶10.)

Bank of America did not receive any written communications from Orman asserting a claim to Blair's accounts until August 25, 2023. (Undisputed Fact 12, Jordan dec. ¶12 and ex. D.) Orman provides evidence that she gave Bank of America oral notice of the claim twice and they never requested anything in writing. (Orman dec. ¶¶4, 10, 11.)

Bank of America states that they acted in good faith and in accordance with its standard policies and procedures for processing small estate affidavits under California Law. (Fact 14, Jordan Dec. ¶14.) Orman disputes this fact because they received oral notices of Orman's handling of the estate. (Orman dec. ¶¶5-13.)

Plaintiff relies on transcripts and audio recordings of Orman's calls with Bank of America. The Court did not rely on these for this motion. First, Bank of America states in reply that they did not receive a copy of these calls and there is no proof of service showing that Bank of America was served with these documents and audio files. In addition, these calls were provided to the Court, but the rules for filing sealed documents was not followed. (See California Rules of Court, rule 2.551.) Since these calls have not been filed with the Court and the procedures for lodging documents under seal was not followed, they cannot be considered when deciding this motion. That being said, these calls were

provided to the Court and all parties should have been served with copies. Orman is therefore ordered to provide copies of the transcripts and audio recordings to all parties within 5 Court days or otherwise confirm that all parties have now received copies.

Bank of America argues that they are not liable because (1) they are immune under Probate Code section 13106, (2) they do not owe a duty to Orman, and (3) the claim is barred by the economic loss rule.

Probate Code

Bank of America argues that it is not liable based upon Probate Code section 13106(a). Probate Code section 13106(a) states that “If the requirements of Sections 13100 to 13104, inclusive, are satisfied, receipt by the holder of the decedent’s property of the affidavit or declaration constitutes sufficient acquittance for the payment of money, delivery of property, or changing registered ownership of property pursuant to this chapter and discharges the holder from any further liability with respect to the money or property. The holder *may rely in good faith on the statements in the affidavit or declaration and has no duty to inquire into the truth of any statement in the affidavit or declaration.*” (emphasis added.)

In *Mautner v. Peralta* (1989) 215 Cal. App. 3d 796, a bank received written notice of a claim by the California Veterans Home, which correctly claimed a right to decedent’s bank account under California’s Military and Veterans Code. The bank later distributed the funds to a beneficiary of decedent’s will after the beneficiary submitted an affidavit under Probate Code section 630 (now section 13100). The Veterans Home sued the bank and the bank claimed it was immune under Probate Code section 631 (now section 13106).

The Court explained that the immunity in 631 (now 13106) makes sense where there is a single affidavit and no reason to doubt its averments, however, “the procedures are silent on how to proceed in the face of competing claims. [¶] The situation changes dramatically when the holder has actual notice of a superior claim.” (*Id.* at 805.) “Notice destroyed any reliance [the bank] reasonably could place on the affidavit, and the purpose of the section 631 immunity is no longer served.” (*Id.* at 806.) The court held that the immunity in section 631 is “inapplicable where the holder has actual notice of a statutory heir’s superior claim and a request to ‘hold’ distribution of decedent’s funds *prior to* receiving a ‘630’ affidavit from an alleged legatee.” (*Id.* at 806.)

Bank of America’s reliance on *Di Angelo v. Wells Fargo Bank, N.A.* (5th Cir. 2016) 820 F.3d 806 is misplaced. *Di Angelo* distinguished *Mautner* because in *Di Angelo*, the daughter had attempted to obtain bank funds belonging to her deceased father, which the bank ultimately gave to the father’s wife after a Probate Cod section 13100 affidavit. *Di Angelo* found that at best the daughter had a partial right to the father’s assets and thus, it was not clear that she had a right to the father’s bank account. (*Id.* at 809.) *Di Angelo*’s attempts to distinguish *Mautner* is not persuasive and *Di Angelo* is a federal court opinion and not binding on this Court.

Further, even if the Court accepts the way *Di Angelo* distinguished its case from *Mautner*, the case here is more like *Mautner* than *Di Angelo*. Here, like in *Maunter*, Orman had the superior

statutory claim since under intestate succession, Blair's daughter would have superior rights to his estate over his granddaughter. (Probate Code section 6402.)

Bank of America also cites to an unpublished case, *Estate of Traver v. Bank of Am., N.T. & S.A.*, No. F033428, 2000 WL 34229663 (Cal. Ct. App. Jan. 19, 2000). That opinion is not available on Lexis Nexis nor could the court locate a copy of the opinion on the docket for the Fifth Circuit. Further, unpublished opinions are not to be relied on. (California Rules of Court, rule 8.1115.)

Here the evidence shows that Orman gave oral notice to Bank of America twice that she was Blair's daughter and some of his grandchildren might try to make a claim on Blair's accounts. These facts show actual notice of a superior statutory claim to Bank of America and following *Mautner*, there is a triable issue of material fact as to whether Bank of America had actual notice of Orman's claims and thus, cannot show immunity under section 13106.

The motion for summary adjudication on the affirmative defense based on Probate Code section 13106 is denied.

Duty

Bank of America argues that it owed no duty to Orman. They rely on *Kurtz-Ahlers, LLC v. Bank of Am., N.A.* (2020) 48 Cal.App.5th 952 and several other cases to show that a bank has limited duties under its deposit agreement. Bank of America, however, has not cited a case similar to the situation here that holds there is no duty. In contrast, *Mautner* held that the plaintiff had sufficiently alleged a duty by the bank "to act with reasonable care in its transactions with depositors including, in the case of a deceased depositor, with decedent's estate." (*Mautner, supra*, 215 Cal.App.3d at 807.)

The Court finds that there is a triable issue on duty here. The motion for summary adjudication on the issue of duty is denied.

Economic Loss Rule

Bank of America also argues that the negligence claim is barred by the economic loss rule. Orman argues that the economic loss rule does not apply because Orman had a special relationship with Bank of America.

Most of the cases cited by Bank of America for the rule that there can be no recovery for economic losses absent some physical injury are product liability cases and "economic loss" usually relates to "damage that occurs through loss of value or use of the goods sold or the cost of repair together with consequential lost profits." (*San Francisco Unified School Dist. v. W.R. Grace & Co.* (1995) 37 Cal.App.4th 1318, 1327, fn. 5.) Further, the citation to *Sheen* for the proposition that "liability in negligence for purely economic losses ... is 'the exception, not the rule'" was made in the context of a discussion on duty. (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 922, 920.) *Maunter* has found that there is a duty here and thus, the general rule that you cannot recover in tort for purely economic damages does not apply.

There is also a discussion on economic loss rule as it relates to contracts. "The rule itself is

deceptively easy to state: In general, there is no recovery in tort for *negligently* inflicted ‘purely economic losses,’ meaning financial harm unaccompanied by physical or property damage.’ (*Sheen [v. Wells Fargo Bank, N.A.]* (2022)) 12 Cal.5th at p. 922, italics added.) Or, as *Robinson* phrased the rule: ‘[t]he economic loss rule requires a [contractual party] to recover in contract for purely economic loss due to disappointed expectations, unless [the party] can demonstrate harm above and beyond a broken contractual promise.’ (*Robinson [Helicopter Co. Inc. v. Dana Corp.]* (2004)) 34 Cal.4th at p. 988.)” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 20.)

Thus, “tort recovery for breach of a contract duty is generally barred... unless two conditions are satisfied. A plaintiff must first demonstrate the defendant’s injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract. Second, the defendant’s conduct must have caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed.” (*Rattagan, supra*, 17 Cal.5th at 20-21.)

“The court has also recognized a breach of contract may sound in tort even when the claim arises from, and is not independent of, the underlying contract if it is within the context of a ‘special relationship,” such as between an insurance company and an insured during the claim handling process, or between a lawyer and a client for malpractice in the provision of professional legal services. [Citations.]” (*Id.* at 23.)

Here, Bank of America argues that decedent’s relationship with it is purely contractual in nature and there is no physical injury alleged. Bank of America argues that relationship between a bank and a depositor is “founded on contract.” (*Chazen v. Centennial Bank* (1998) 61 Cal.App.4th 532, 537.) They argue that Blair was bound by the Bank’s Deposit Agreement and Disclosures. Bank of America includes a fifty-page contract without explaining what terms, if any, address how Bank of America agreed to handle an account after the account holder passed away. (Jordan dec. ex. B.) Bank of America has not shown that the claim here arises from Blair’s contract with Bank of America and therefore has not shown that the economic loss rule applies here.

Since Bank of America has not met its initial burden on showing that the negligence claim arises from Blair’s contract with the bank, the Court need not consider whether Orman had a special relationship with Bank of America.

The motion for summary adjudication on the economic loss rule affirmative defense is denied. Having found that the three issues for summary adjudication fail, the Court finds that the motion for summary judgment also fails.

Attorney Fees

Bank of America argues that normally fees are not allowed in tort cases and no statute authorizes fees here. Orman has not provided a basis for fees. The motion for summary adjudication as to attorney fees is granted.

CASE NAME: ABDESSALAM MANSORI VS. LAILA ELFAZOUZI

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: CHRISTOPHER J. DYAS**

FILED BY: ELFAZOUZI, LAILA

TENTATIVE RULING:

This Tentative Ruling applies to Lines 8, 9, 10 and 11.

Summary

Counsel Christopher J. Dyas filed Motions to be Relieved as Counsel of Record for his clients, Laila Elfazouzi, and Ikram Mansori in related cases C24-00701 and C24-01098. But, it is not clear from the Motion that Mr. Dyas wishes to withdraw from representing his client Hatim Mansori, as well. Notices were provided to Ms. Elfazouzi and to Ikram Mansori "c/o Hatim Mansori." However, no declaration or motion was filed for Hatim Mansori in Case C24-00701. The opposing party in each case is Abdesalam Mansori. Assuming Mr. Dyas is making such a motion, these motions are unopposed and **granted** as to Laila Elfazouzi and Ikram Mansori.

Background

Abdesalam Mansori ("Abdesalam") is a Plaintiff in Case No. C24-00701 and is a Defendant in Case No. C24-01098. This case involves allegations in which Abdesalam claims that his mother, Laila Elfazouzi, and his siblings Ikram Mansori and Hatim Mansori, improperly placed a lien on a home that he owns in Discovery Bay, California. Specifically, Laila Elfazouzi recorded a mechanic's lien on property held by her son, Abdesalam Mansori, name on February 7, 2024.

The Court found that Ms. Elfazouzi had no legal authority to record a mechanic's lien on Abdesalam's property. The Court found that this lien was placed in an attempt to prevent Abdesalam from selling his property. A hearing to release or expunge the lien was calendared twice—the first time the court continued the matter due to issues involving notice of the actual hearing date. The petition to release the lien was eventually heard and granted on May 15, 2024. Abdesalam Mansori received a judgment as prevailing party for attorney's fees & costs in the amount of \$8,528.80.

Ms. Elfazouzi, Ikram Mansori and Hatim Mansori have been brought back to court on Orders to Show Cause and Orders of Examination for the purposes of paying attorney's fees owed to Abdesalam. Currently, the parties are attempting to work out a plan for payment of these fees. Mr. Dyas wishes to be relieved as Counsel from these two cases. Notices were provided to Ms. Elfazouzi and her daughter, Ikram Mansori. The Notices were supported by declaration of Mr. Dyas. However, the Court records do not show that Hatim Mansori was served with Mr. Dyas' Motion to be Relieved as Counsel.

Analyses

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination "upon the consent of both client and attorney," or "upon order of the court, upon the application of either client or attorney, after notice from one to the other." Counsel Dyas has complied with the provisions of this rule and statute providing notice to his clients, Laila Elfazouzi supporting each motion with a declaration articulating

the reasons for withdrawal.

The Court acknowledges that dismissal of Counsel will likely result in further difficulty in arranging for a resolution of attorney's fees owed to Abdesalam Mansori. However, the Court continues to monitor the progress of the underlying action and understands that Abdesalam Mansori has assistance of counsel to pursue said fees.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record. This motion is **granted** for Laila Elfazouzi and Ikram Mansori. The Court orders Mr. Dias to prepare Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053), and e-file them with the Court. The withdrawal is effective immediately. Mr. Dias shall serve a copy of the Order to his former clients by mail at his last known address. No appearance is required on February 4, 2026. This order does not apply to Hatim Mansori.

Mr. Dias and counsel for Abdesalam Mansori are ordered to appear for a case management conference on July 30, 2026 at 8:30 a.m. and are ordered to file a further case management conference outline the status of this case as it relates to the satisfaction of judgment for attorney's fees.

9. 9:00 AM CASE NUMBER: C24-01098
CASE NAME: LAILA ELFAZOUZI VS. ABDESASALAM MANSORI
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL RE: CHRISTOPHER J. DYAS**
FILED BY: MANSORI, HATIM
TENTATIVE RULING:
See No. 8.

10. 9:00 AM CASE NUMBER: C24-01098
CASE NAME: LAILA ELFAZOUZI VS. ABDESASALAM MANSORI
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL RE: CHRISTOPHER J. DYAS**
FILED BY: MANSORI, IKRAM
TENTATIVE RULING:
See No. 8.

11. 9:00 AM CASE NUMBER: C24-01098
CASE NAME: LAILA ELFAZOUZI VS. ABDESASALAM MANSORI
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL FOR LAILA ELFAZOUZI**
FILED BY: ELFAZOUZI, LAILA
TENTATIVE RULING:
See No. 8.

12. 9:00 AM CASE NUMBER: C25-00261
CASE NAME: KIKI BROWS VS. RAMANUJAN GROUP LLC
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: RAMANUJAN GROUP LLC
TENTATIVE RULING:

Defendant Ramanujan Group LLC's meet and confer declaration shows that the moving party has not yet complied with Code of Civil Procedure, section 430.41. The Court continues the demurrer hearing on its own motion to **9:00 a.m., Wednesday, March 18, 2026, in Department 16.**

Of course, trial courts are not required to ignore defects in the meet and confer process. If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.

(Dumas v. Los Angeles County Bd. of Supervisors (2020) 45 Cal.App.5th 348, 355, fn. 3.)

Defendant Ramanujan Group LLC shall file a Code of Civil Procedure section 430.41 meet and confer declaration by **Wednesday, February 25, 2026**, showing compliance with the requirement to meet and confer "in person, by telephone, or by video conference." (Code Civ. Proc., § 430.41, subd. (a).)

13. 9:00 AM CASE NUMBER: C25-00261
CASE NAME: KIKI BROWS VS. RAMANUJAN GROUP LLC
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFF'S 1ST AMENDED COMPLAINT**
FILED BY: RAMANUJAN GROUP LLC
TENTATIVE RULING:

Defendant Ramanujan Group LLC's meet and confer declaration shows that the moving party has not yet complied with Code of Civil Procedure, section 435.5. The Court continues the motion to strike hearing on its own motion to **9:00 a.m., Wednesday, March 18, 2026, in Department 16.** (See *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 3 [discussing trial court's discretion to continue hearings in order to allow for parties to meet and confer].) Defendant Ramanujan Group LLC shall file a Code of Civil Procedure section 435.5 meet and confer declaration by **Wednesday, February 25, 2026**, showing compliance with the requirement to meet and confer "in person, by telephone, or by video conference. . ." (Code Civ. Proc., § 435.5, subd. (a).)

14. 9:00 AM CASE NUMBER: C25-01017
CASE NAME: STEVEN KENT VS. RICHARD KENT
***HEARING ON MOTION IN RE: COSTS OF SERVICE UNDER CCP 415.30**
FILED BY: KENT, STEVEN JAMES
TENTATIVE RULING:

Summary

Plaintiff Steven Kent's Motion to recover Costs of Service under Cal. Code of Civ. Proc. § 415.30 from Defendant Richard Kent is **denied** without prejudice.

Background

On October 17, 2025, Plaintiff Steven Kent ("Plaintiff") filed a Motion to Recover Costs of Service

pursuant to Cal. Code of Civ. Proc. § 415.30 against Defendant Richard Kent (“Defendant”). The Motion was supported by a Notice, Declaration of Lonnie Kocontes. Plaintiff seeks to recover \$400.00 in costs for personal service. However, no receipts, invoices or reasonable objective proof that he paid \$400.00 to a process server is included with Plaintiff’s moving papers.

An opposition was filed by Defendant through counsel Carolyn Cain, Esq. Defendant denies receiving mail copies of the summons, complaint and acknowledgment form, but admits that he was personally served with summons and first amended complaint on September 30, 2025. Defendant further argues that the alleged \$400.00 in costs incurred by plaintiff is excessive, based on Counsel’s routine practice of retention of process servers.

The reply brief filed by Plaintiff Counsel on January 28, 2026 contains no further proof of actual costs incurred.

Analyses

The Court acknowledges that Cal. Code of Civ. Proc. § 415.30 requires this Court to award costs of service if a litigant, upon service by mail, fails to complete and return an acknowledgement form. Indeed, section (d) of Cal. Code of Civ. Proc. § 415.30 states:

(d) If the person to whom a copy of the summons and of the complaint are mailed pursuant to this section fails to complete and return the acknowledgement form set forth in subdivision (b) within 20 days from the date of such mailing, the party to whom the summons was mailed shall be liable for reasonable expenses thereafter incurred in serving or attempting to serve the party by another method permitted by this chapter, and, except for good cause shown, the court in which the action is pending, upon motion, with or without notice, shall award the party such expenses whether or not he is otherwise entitled to recover his costs in the action.

Applied here, Plaintiff does not prove, by a preponderance of the evidence, that he incurred \$400.00 in costs to effectuate personal service on Defendant. While the Declarations of the process server and Plaintiff’s motion documents contain such representation, no objective, verifiable proof of costs accompanies the motion. Plaintiff has not submitted a receipt, invoice, statement by the process server, or proof of payment that supports the \$400 claim for costs. Moreover, the Court finds reasonable Defendant’s argument that such costs exceed the normal costs for process service.

Ruling

Plaintiff’s Motion for reimbursement of costs of service in the amount of \$400 is **denied** without prejudice. Defendant’s counsel shall prepare a proposed order conforming to this ruling and e-file it with the Court no later than five (5) days after the date of the hearing of this motion.

15. 9:00 AM CASE NUMBER: C25-02843
CASE NAME: JULIANO SILVA VS. JAMES RIVER INSURANCE
***HEARING ON MOTION IN RE: SETTING THE REASONABLE DEPOSITION FEE FOR DR. ROBERT ROVNER**
FILED BY: SILVA, JULIANO

TENTATIVE RULING:

On January 28, 2026, this motion was continued, *sua sponte*, to March 26, 2026 in Department 10 at 9:00 a.m. No appearance is required on February 4, 2026.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C23-00908

CASE NAME: ABDO NASSER VS. DOES 1 TO 50

***HEARING ON MOTION FOR DISCOVERY COMPEL ENTRY OF PROTECTIVE ORDER GOVERNING CONFIDENTIAL INFORMATION**

FILED BY: MW CELL REIT 1 LLC

TENTATIVE RULING:

Summary

Defendant MW Cell REIT 1 LLC's ("MWC" or "Defendant") Motion to Compel Plaintiff Abdo Nasser ("Plaintiff") to Enter a Protective Order governing Confidential Information and for sanctions for fees and costs in the amount of \$12,080 is vacated and referred to a Discovery Referee forthwith as set forth herein.

Background

In the Second Amended Complaint filed on April 8, 2024, Plaintiff pursues this suit against T-Mobile USA, Inc., T-Mobile West, LLC ("T-Mobile Defendants") and MWC alleging two causes of action, including trespass and nuisance related to cellular phone transmission facilities and related appurtenances that are alleged to have been placed on Plaintiff's property. Plaintiff seeks damages, including loss of use, general damages, property damages, and loss of earning capacity.

Through this Motion, MWC seeks a protective order claiming to protect certain trade secrets, confidential information, and other documents it claims to be protected by the California Uniform Trade Secrets Act. MCW seeks to protect, among other things, the alleged lease agreements, the costs of the lease, and the terms and conditions contained therein. MWC mentions that its practice of entering the form of protective orders sought have been approved by other courts in other cases. After attempting to meet and confer with Plaintiff's Counsel to enter into a protective order, MWC claims that Plaintiff refused to enter into a protective order.

In his opposition, Plaintiff's counsel contends that Plaintiff does not seek trade secrets, but it interested in understanding how much money MWC making by wrongfully leasing, occupying or using his real property. Plaintiff further argues that MWC did not prove the existence of a trade secret and waived its right to a protective order. The T-Mobile Defendants filed a statement of non-opposition to MWC's motion.

Past Admonitions

On July 31, 2025, at the hearing of a discovery motion initiated by Plaintiff, this Court has already found that both Parties, through Counsel, have acted improperly and have engaged in a misuse of the discovery process. The Court found that Plaintiff's counsel had clearly failed to meet and confer prior

to bringing an earlier motion to compel responses to discovery responses. The Court had also found that MWC has committed sanctionable conduct by making unsubstantiated boilerplate objections to every form interrogatory and each request for production, without providing substantive responses.

In denying Plaintiff's Motion to Compel Discovery, the Court found that the actions by both Counsel constitute a misuse of the Discovery Act and amounted to bad faith. The Court warned that future violations will not be tolerated by this Court. Counsels were admonished, then, that should this behavior continue in this case, the Court places the Parties on notice that sanctions may be imposed, *sua sponte*, by the Court. [See Order, July 31, 2025]. The Court also placed parties on notice that it may require the Parties to retain a Discovery Referee for all future discovery motions, given their improper conduct. The Court now revisits the apparent need for a Discovery Referee.

Analyses

This Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the discovery statutes. Before making a motion to compel, counsel are advised to consider carefully whether doing so is truly worthwhile. "Motions to compel should be considered a last resort when trying to prepare a case for trial." California Civil Discovery Practice (4th ed Cal CEB) §15.32.C. Additionally, "trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified. If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes." California Civil Discovery Practice (4th ed Cal CEB) §15.38.6. Here, Counsel appeared to have met and conferred, but are unable to resolve the discovery disputes before Plaintiff filed its motions.

On motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See Cal. Code of Civ. Proc. §§639(a)(5), (b)–(d); Cal Rules of Ct 3.920–3.932, *Lu v Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).

The Court finds, in its discretion, that such an appointment of a Discovery Referee is warranted under the circumstances of this case. Cal. Code of Civ. Proc. Section 639(a)(5) states: "When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon."

Applied here, the Court finds that a discovery referee is necessary to hear and determine this and all future discovery disputes in this case. The Court makes this finding on the grounds that Counsel have previously engaged in a misuse of the discovery process in a past motion. The Court also finds that MWC and Plaintiff have a remarkable history of difficulty in cooperating with each other, and the Parties regularly display an inability to resolve matters informally without court intervention. The Court finds that the existing disputes raised by MWC's motion and the nature of acrimony underlying this litigation require discovery reference. After considering the moving and opposition papers submitted by Counsel, and analyzing the applicable statutory and decisional authorities, the Court finds good cause to make the following findings, orders and ruling.

Ruling

Discovery Referee is appointed. The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Cal. Code of Civ. Proc. §§ 639(a)(5) and 640.

1. The Discovery Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear the Motion for Protective Order scheduled for hearing on February 4, 2026, and any and all subsequently filed discovery motions involving all Parties, including the T-Mobile Defendants. The hearing of MWC's Motion scheduled for February 4, 2026 is **vacated** from Department 16's calendar and is referred for further hearing to the Discovery Referee. All future discovery motions shall be filed with and heard directly by the Discovery Referee upon appointment.
2. By no later than February 10, 2026, Counsel for the Parties, including the T-Mobile Defendants, are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to be appointed to the Court along with the proposed referee's *curriculum vitae* and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee by February 10, 2026 the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, e-mailed to dept16@contracosta.courts.ca.gov by Friday, February 13, 2026. The Court will select one of the proposed referees by unreported minute order. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.
3. No party has established an economic inability to pay a *pro rata* share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 33.33% between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to this discovery motion between MWC and Plaintiff.
4. MWC's Counsel is directed to prepare and e-file a proposed order for the appointment of the referee, including Code Civ. Proc. § 639 that conforms to this ruling, approved as to form by all Counsel, attaching this tentative ruling no later than five (5) days after the hearing on this matter. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment. The Discovery Referee shall be also be provided with a copy of this order, and the order of the Court dated July 31, 2025.
5. The Clerk of Court shall vacate all of Plaintiff's Discovery Motions calendared for February 4, 2026. Any and all future discovery disputes shall be referred to the Discovery Referee until further orders of the Court.
6. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO INTERROGATORIES
FILED BY: VAHIDY, ZEHRA**

TENTATIVE RULING:

Summary

Plaintiff Zera Vahidy's Motion to Compel Further Responses to Form and General Interrogatories, and Further Responses to Requests for Admissions that she propounded on Defendant ("Motion") is **vacated** and referred to a Discovery Referee as set forth herein.

Background

This is an employment case where Plaintiff Zera Vahidy ("Plaintiff") alleges her employer, Defendant Mechanics Bank ("Defendant") discriminated against her on the grounds that she is Pakistani-American, denied medical accommodations, and ultimately terminated her employment after twenty years of service. Defendant Mechanics Bank denies these allegations and claims that Plaintiff had demonstrated performance issues that lead to her separation.

On October 30, 2025, Plaintiff filed a Motion to Compel Further Responses to Form and General Interrogatories, and Further Responses to Requests for Admissions that she propounded on Defendant ("Motion"). The Motion also seeks \$66,518.76 in monetary sanctions. The Motion is supported by a Notice, Separate Statement, Memorandum of Points and Authorities and Declaration of Counsel Sarah R. Nichols. The Motion specifically seeks further responses to the following discovery requests:

1. Plaintiff's Special Interrogatories, Set One, Nos. 1-35.
2. Plaintiff's Form Interrogatories - General, Set One, Nos. 12.1, 12.7, 15.1, 16.1, 16.2, 16.3 and 17.1.
3. Plaintiff's Form Interrogatories – Employment, Nos. 201.1, 201.3, 204.4, 207.2, 209.2, 211.1, 215.1, 215.2, 216.1, and 217.1.
4. Plaintiff's Requests for Admission, Nos. 6-8, 16, 17, 20, 21, 23, 24, 25, and 35.

Plaintiff's counsel claims that Defendant's responses were evasive and contained objections that were improper.

On January 22, 2026, Defendant filed opposition to this Motion supported by a separate statement, Memorandum of Points and Authorities, and Declaration of Counsel Emily Ely. Defendant's counsel claims that Plaintiff's counsel did not meaningfully meet and confer to resolve the discovery disputes and did not extend professional courtesy to her when she was experiencing serious medical challenges requiring emergency room hospital visits. Defendant also asserts that the responses to the discovery in question were made in good faith, and that the objections were valid because the discovery propounded was vague or impermissibly sought documents that were irrelevant, going back over a decade. Defendant's counsel also catalogued the meet and confer efforts to resolve the issues with Plaintiff's counsel.

On January 28, 2026, Plaintiff filed a reply brief contesting the arguments raised by Defendant's opposition, which the Court has considered.

Analyses

This Court maintains a judicial philosophy that discovery motions are overused and should be

discouraged unless there is no compliance with the discovery statutes. Before making a motion to compel, counsel are advised to consider carefully whether doing so is truly worthwhile. “Motions to compel should be considered a last resort when trying to prepare a case for trial.” California Civil Discovery Practice (4th ed Cal CEB) §15.32.C. Additionally, “trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified. If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes.” California Civil Discovery Practice (4th ed Cal CEB) §15.38.6. Here, Counsel appeared to have met and conferred, but are unable to resolve the discovery disputes before Plaintiff filed its motions.

On motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See Cal. Code of Civ. Proc. §§639(a)(5), (b)–(d); Cal Rules of Ct 3.920–3.932, *Lu v Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan). The Court finds, in its discretion, that such an appointment of a Discovery Referee is warranted under the circumstances of this case. Cal. Code of Civ. Proc. Section 639(a)(5) states: “When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon.”

Applied here, the Court finds that a discovery referee is necessary to hear and determine this and all future discovery disputes in this case. The Court makes this finding on the grounds that there are 52 interrogatories for which further responses are being compelled. The issues relate to statements made by several witnesses and pertain to numerous factual allegations involving whistleblowing, workplace accommodations, and discrimination. There are 11 Requests for Admissions, consisting, for which further responses are being compelled. There are a total of 194 discovery responses being elicited, including subparts. The Parties motion consists of over 700 pages, including exhibits of numerous “meet and confer” dialogue. The Court finds that Counsel are unable to resolve discovery issues in an informal manner after meeting and conferring, suggesting a level of acrimony that requires discovery referral.

After reviewing the papers submitted by Counsel, and applying the relevant statutory and decisional authorities, the Court finds good cause to refer this Motion to a Discovery Referee as follows:

Ruling

Discovery Referee is appointed. The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Cal. Code of Civ. Proc. §§ 639(a)(5) and 640.

1. The Discovery Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear Plaintiff’s Motion scheduled for hearing on February 4, 2026, and any and all subsequently filed discovery motions involving both Parties. The hearing of this Motion scheduled for February 4, 2026 is **vacated** from Department 16 and is referred for further hearing to the Discovery Referee.

2. By no later than February 10, 2026, Counsel for the Parties, are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to the Court along with the proposed referee's *curriculum vitae* and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee by February 10, 2026 the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, e-mailed to dept16@contracosta.courts.ca.gov by Friday, February 13, 2026. The Court will select one of the proposed referees by unreported minute order. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.
3. No party has established an economic inability to pay a *pro rata* share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 50% between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to this discovery motion referred to the Discovery Referee.
4. Plaintiff's Counsel is directed to prepare and e-file a proposed order for the appointment of the referee, including Code Civ. Proc. § 639 that conforms to this ruling, approved as to form by all Counsel, attaching this tentative ruling no later than five (5) days after the hearing on this matter. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment.
5. The Clerk of Court shall vacate all of Plaintiff's Discovery Motions calendared for February 4, 2026. Any and all future discovery disputes shall be referred to the Discovery Referee until further orders of the Court.
6. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.

18. 9:01 AM CASE NUMBER: C24-01435
CASE NAME: TRYCIA LINO VS. GRE MANAGEMENT SERVICES, INC.
***HEARING ON MOTION FOR DISCOVERY ORDER IMPOSING SANCTIONS FOR FAILURE TO OBEY**
PRIOR COURT ORDER
FILED BY: SAFEWAY, INC.

TENTATIVE RULING:

Summary

Defendant GRE Management Services, Inc. and Safeway, Inc. (collectively, "Defendants") Motion for Order Imposing Sanctions against Plaintiff Trycia Ann Lino ("Plaintiff") is **granted** in part as set forth herein.

Background

On October 8, 2025, Defendants filed a Motion for Order Imposing Sanctions for Failure to Obey Prior Order dated July 2, 2025. The Motion is supported by a Notice, Memorandum of Points and Authorities, and Declaration of Natasha Langenfeld., Esq. The Motion seeks Terminating Sanctions

striking Plaintiff's Complaint and Rendering Judgment by Default Against Plaintiff. The Motion also seeks \$1,470 in Sanctions and requests any other issue, evidence or termination sanctions the court deems appropriate under the Discovery Act. Proof of service was accomplished by electronic mail on October 7, 2026. Prior to filing this Motion, Defendants' Counsel had sent a meet and confer letter to Plaintiff's counsel on September 3, 2025, seeking further response to discovery.

No timely opposition was filed by Plaintiff.

Analyses

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing." Nine court days before the hearing of this motion is January 20, 2026. Plaintiff Trycia Lino did not file a timely to this Motion.

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that failure to timely oppose this Motion is a deemed to be her consent to granting this motion.

Terminating Sanctions

While this motion is unopposed, the Court is mindful of its duty to exercise terminating sanctions in accordance with the parameters of its legal authority. Terminating sanctions under Code of Civil Procedure section 2023.030 authorizes a trial court to impose monetary sanctions, issue sanctions, evidence sanctions, or terminating sanctions against 'anyone engaging in conduct that is a misuse of the discovery process.'" *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 991. Subdivision (d) of section 2023.030 provides, "The court may impose a terminating sanction by one of the following orders: (1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process. (2) An order staying further proceedings by that party until an order for discovery is obeyed. (3) An order dismissing the action, or any part of the action, of that party. (4) An order rendering a judgment by default against that party."

The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. 'Discovery sanctions "should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.'" [Citation.] If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a

history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” *Doppes, supra*, 174 Cal.App.4th at p. 992, fn. omitted, quoting *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279–280 disapproved on other grounds in *Mileikowsky v. West Hills Hospital & Medical Center* (2009) 45 Cal.4th 1259.

The trial court may order a terminating sanction for discovery abuse “after considering the totality of the circumstances: [the] conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery.” *Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1246.

The standard of appellate review of a trial court ruling on a terminating sanction is not whether the trial court should have imposed a lesser sanction; rather, the question is whether the trial court abused its discretion by imposing the sanction it chose.”” *Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093, 1105.

In applying the foregoing authorities, the Court finds good cause to make the following ruling.

Ruling

Defendants’ Motion Imposing Sanctions is **granted** as follows:

1. The Court finds that Plaintiff failed to obey the order of this Court dated July 2, 2025, compelling Plaintiff to serve “code-compliant, objection free, verified responses, along with responsive documents, no later than 60 days after service of this order” pursuant to Cal. Code of Civ. Proc. § 2023.0101(g). Therefore, terminating sanctions are issued pursuant to Cal. Code of Civ. Proc. § 2023.030(d)(2) as follows:
 - (a) Plaintiff’s case is **stayed** until Plaintiff complies with the Court order dated July 2, 2025 by no later than February 20, 2026. No other proceedings will be If Plaintiff complies with this order, then the stay shall be lifted.
 - (b) If Plaintiff fails to produce all discovery as ordered by February 20, 2026, this case is **dismissed** with prejudice pursuant Cal. Code of Civ. Proc. § 2023(d)(3) **and** the court enters an order rendering a judgment by default against Plaintiff and for Defendant pursuant to Cal. Code of Civ. Proc. § 2023(d)(4).
2. Defendants motion for sanctions in the amount of \$1,470 is granted. Plaintiff shall pay monetary sanctions no later than ten (10) days from this order.
3. The Court sets a Case Management Conference for discovery compliance on February 24, 2026 at 8:30 a.m. Counsel are ordered to appear via Zoom or in-person to provide the Court with a status report on compliance with this order.
4. Defendants’ counsel is ordered to prepare and e-file a proposed order conforming with this tentative ruling no later than five (5) days from the date of the hearing.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES, II
HEARING DATE: 02/04/2026

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES, II
HEARING DATE: 02/04/2026